

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Post-Dissolution Mandate

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Issued August 13, 2026

The judgment of this Court entered July 9, 2026, is now transmitted as the mandate. The Court affirms the district court's mitigation judgment as a matter of law and affirms the amended judgment entered December 15, 2025, in the amount of \$2,700,000. Those are the only two components of the counterfactual appellate disposition.

The district court's conditional Rule 59 ruling remains dormant because the judgment supporting that alternative was affirmed. This Court orders no new trial and no remand. Liability and causation remain undisturbed, and the district court may resume ordinary administration of the affirmed monetary judgment consistent with this mandate.

The panel stayed issuance on July 29 under Rule 41(d)(2) while Blue Ember intended to prepare a certiorari petition. After counsel confirmed abandonment, the panel dissolved that stay on August 12 and directed release one day later. No petition was filed, no recall occurred, and this issuance follows the exact dissolution sequence.

Questions about interest, enforcement, or release of security are collateral administrative matters. They do not modify the judgment transmitted here. The Fictional Fourth Circuit exercise clerk issues this mandate to the United States District Court for the Western District of North Carolina, district docket SYN-WDNC-24-CV-0520.

Certification and isolated effect

The clerk certifies that this mandate reproduces the operative effect of the counterfactual opinion and judgment without enlarging it. The affirmative-defense preservation premise assumed in this branch allowed review of mitigation, but the mandate does not transform that procedural premise into a new finding. It records the final branch result after the certiorari stay ended.

The ordinary July 30 issuance was withheld by the July 29 grant. The August 12 court order dissolved that grant when the intended petition was abandoned, and the August 13 release order authorized transmission. Each step occurred before the next; none depends on the incompatible denial path or its separate release and mandate.

This document does not contain the actual appellate disposition. In the actual appeal, the panel reversed mitigation JMOL because the actual Rule 50(a) motions were limited to causation, affirmed only the conditional damages new-trial ruling and its damages-only scope, vacated the amended judgment, and remanded. None of those actual components is imported here.

Issued under the seal of this fictional exercise court by the Fictional Fourth Circuit exercise clerk on August 13, 2026. Electronic notice accompanies transmission to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb. The counterfactual docket warning controls every use of this mandate, which never was issued in a real proceeding.